

Sanjeev Kumar & Others vs State Of H.P. & Anr on 4 November, 2024

Author: Virender Singh

Bench: Virender Singh

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IN THE HIGH COURT OF HIMACHAL PRADESH AT
SHIMLA
Cr. MM0 No. 715 of 2024

Decided on : 4.11.2024

Sanjeev Kumar & others

...Petitioners

Versus

State of H.P. & anr

...Respondents

Coram
Hon'ble Mr. Justice Virender Singh, Judge
Whether approved for reporting?

For the Petitioners : Mr. Abhinav Ghabroo,
Advocate.

For the Respondents :Mr. Tejasvi Sharma, Mr.
H.S. Rawat, for respondent
No. 1.

Mr. Yash Pal, Advocate, for
respondent No. 2.

Virender Singh, Judge (oral)

The petitioners have filed the present petition, under Section 528 of the Bharatiya Nagarik Suraksha Sanhita, 2023 (hereinafter referred to as 'the B.N.S.S.') for seeking quashing of the FIR No. 140 of 2022, dated 14.10.2022, (hereinafter referred to as 'the FIR in question'), under Sections 498-A, 323 and 504 of the Indian Penal Code (hereinafter referred to as 'the IPC') as well as the consequential proceedings, stated to be pending before the Court of learned Judicial Magistrate First Class, Kangra, (hereinafter referred to as 'the trial Court').

2. The petition has been filed on the ground that the marriage between petitioner No. 1 and respondent No. 2 was solemnized on 18.11.2010, according to Hindu rites and customs. Out of this wedlock, petitioner No. 1 and respondent No. 2, have been blessed with a daughter.
3. Due to incompatibility of behaviour between petitioner No.1 and respondent No. 2, the parties have started living separately. Thereafter, respondent No. 2 has lodged FIR No. 140 of 2022, dated 14.10.2022, against the petitioners. After registration of the FIR, Police has conducted the investigation and has filed report under Section 173(2) Cr. P.C., upon which, cognizance has been taken by the learned trial Court and the matter is still pending adjudication.
4. It is the further case of the petitioners that due to the intervention of the relatives and respectables of the society, petitioner No. 1 and respondent No. 2 have mutually settled all their interse dispute, including dissolution of marriage. The terms and conditions of the compromise, have been reduced into writing.
5. The petitioner No. 1 and respondent No. 2 have dissolved their marriage, by way of petition, filed under Section 13-B of the Hindu Marriage Act. All the payments are stated to have been made to respondent No. 2 by petitioner No. 1. Since, the matter has been settled between petitioner No. 1 and respondent No. 2, as such, the present petition has been filed to quash the FIR in question and the resultant proceedings, in view of the compromise. The compromise deed has also been annexed with the petition.
6. On the basis of above facts, a prayer has been made to allow the application.
7. When put to notice, respondent No. 1 has filed the status report, disclosing therein about the manner, in which respondent No. 2 has lodged the FIR, against petitioner No. 1. Police has conducted the investigation and thereafter, filed the charge-sheet.
8. On 16.9.2024, respondent No. 2 appeared in the witness box and made statement on oath disclosing therein the fact that due to non-compatibility of behaviour, between her and petitioner No. 1, they have divorced each other and she does not want to proceed further with the matter. She has further stated that she has no objection, in case the present petition is allowed and FIR in question and the consequential proceedings, are ordered to be quashed.
9. Similar type of statements have also been made by the petitioners. According to the petitioners, all the payments have been made to respondent No. 2.
10. Keeping in view the pleadings as well as the stand taken by respondent No. 2, this Court is of the view that petitioner No. 1 and respondent No. 2 though married each other, but, compelled by the circumstances, both of them were litigating with each other. Due to this fact, respondent No. 2 had lodged the case against the petitioners. The police has conducted investigation and filed report under Section 173(2) Cr. P.C., which is still pending adjudication before the learned trial Court.

11. Now, with the intervention of the respectable of the society, the petitioner No. 1 and respondent No. 2 have settled their interse dispute. The terms and conditions of the compromise have been reduced into writing and annexed with the petition, as Annexure P-3.

12. The primary purpose of law is to maintain peace in the society and when the parties to the marriage, i.e. petitioner No. 1 and respondent No. 2 have decided to part their ways by settling all the interse disputes, then, the continuation of the criminal proceedings, arising out of FIR in questions, lodged by respondent No. 2, would certainly amount to abuse of the process of law.

13. No doubt, the criminal machinery has been put into motion by respondent No. 2, by lodging the FIR in question, against the petitioners, but, now she has compromised the matter with the petitioners.

14. The terms and conditions, which have been agreed upon by the parties, in order to settle all the disputes, should be honoured by the Court, as no useful purpose would be achieved, by keeping the proceedings alive.

15. Acceptance of the compromise will also save the precious judicial time of the learned trial Court, as the learned trial Court will be in a position to devote such time for deciding some other serious disputes, pending before it.

16. Considering all these facts, the present petition is allowed and FIR No. 140 of 2022, dated 14.10.2022 (Annexure P-3), under Sections 498-A, 323 and 504 IPC, as well as consequent proceedings thereto, pending adjudication before the learned trial Court, are quashed. The statements, so recorded on 16.9.2024 and today, as well as, the compromise, Annexure P-3 be read as part of the judgment.

17. The present petition is allowed in the aforesaid terms. Pending miscellaneous application(s), if any, also stands disposed of.

(Virender Singh) Judge November 4, 2011 Kalpana